



Terms



Get started

For Consumers



EU - Terms of Service

ROW - Terms of Service

For Commercial Customers



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Additional Product Terms

Partner-served deployment terms

Additional Terms for Use of Mistral AI Products on Customer Infrastructure

Data Processing Addendum

For Partners



Connectors terms

For Everyone



between the Parties, governing the provision of the Mistral AI Products by Mistral AI to the Customer. The DPA is hereby incorporated to the Agreement by reference.

(b) “**Applicable Data Protection Law**” means any applicable privacy, data security, or data protection law or regulation, including, to the extent applicable, Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 applicable since 25 May 2018 (the “GDPR”) and the California Consumer Privacy Act of 2018, as amended, and associated regulations promulgated thereunder (“CCPA”).



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lex.europa.eu/eli/dec_impl/2021/914/oj?uri=CELEX:32021D0914.

(j) “**Subprocessor**” means any Processor appointed by Mistral AI to carry-out all or part of the Processing on behalf of the Customer.

(k) “**Trust Center**” means the Mistral AI Trust Center available at <https://trust.mistral.ai/> (as such URL may be updated by Mistral AI from time to time).

The terms “**Controller**”, “**Processor**”, “**Data Subjects**”, and “**Personal Data Breach**”, (in each case, or analogous variations thereof



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Policy, unless (a) Customer opted-out of training or (b) uses a Mistral AI Product that is opted-out by default and has not opted-in. Customer acknowledges that if Customer provides feedback to Mistral AI by using the in-app "thumbs up" or "thumbs down" features (the "**Feedback**"), Mistral will use such Feedback as well as the associated Input and Output, as Controller, to train its artificial intelligence models, conduct research or improve the Mistral AI Products.

- Automated moderation, including abuse monitoring on our APIs (except, in this last case, when zero data retention has been activated), to enforce the Agreement.



- Processing usage and operational data (such as product usage events, performance metrics, billing metrics, and Feedback) to produce aggregated or anonymized data or statistics in accordance

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In such an event, Mistral AI is entitled to refuse to perform the Processing that it believes to be in violation of the Applicable Data Protection Law,

- Ensure that any person Mistral AI authorizes to Process Personal Data (including Mistral AI team members and the Subprocessors), is subject to a duty of confidentiality,
- Comply with all obligations applicable to it in its role as a Processor under Applicable Data Protection Law and provide the same level of privacy protection as is required by Applicable Data Protection Law,



■ Promptly notify Customer if Mistral AI determines it can no longer meet its obligations under this DPA, and allow Customer, upon notice to Mistral AI, to take reasonable and appropriate steps to stop and

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4. Data Subjects

4.1 Customer responsibility

Customer shall (a) provide Data Subjects with the information required by the Applicable Data Protection Law and (b) respond to all Data Subjects requests to exercise their rights regarding the Processing.



4.2 Assistance

Legal Center

Taking into account the nature of the Processing and upon Customer's

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persons, Mistral AI shall implement and maintain technical and organizational measures designed to protect Personal Data from any Personal Data Breach that meet or exceed requirements under Applicable Data Protection Law. The security measures implemented by Mistral AI under this DPA are listed in Exhibit 2 of this DPA. Customer acknowledges that such security measures are subject to technical progress and development and that Mistral AI may update them from time to time, provided that such updates do not materially decrease the overall security of the Processing.



6. Personal Data Breach

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- The likely consequences of the Personal Data Breach, and
- The measures proposed or taken by Mistral AI following the Personal Data Breach, including to prevent from any new occurrence.

All of the information above may not be available at the time of initial notice and so may be provided by Mistral in phases as it becomes available.

6.3 Assistance



Upon Customer's written request, taking into account the nature of the Processing and the information available to Mistral AI, Mistral AI shall provide the Customer with commercially reasonable assistance with

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- Mistral AI will enter into a written agreement with each Subprocessor imposing data protection terms that require the Subprocessor to protect the Personal Data to the same standards provided by this DPA, and
- Mistral AI will remain liable to Customer if such Subprocessor fails to fulfill its data protection obligations with regard to the relevant Processing activities under the DPA.

7.2 Notification



Mistral AI will provide reasonable notice to the Customer of any changes to the list of Subprocessors prior to engaging such Subprocessor. The Customer may only object in writing to Mistral AI's appointment of a new

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8.2 Customer located in a Restricted Country

This Section only applies if Customer is located in a Restricted Country. By accepting this DPA, Mistral AI and Customer conclude Module 4 (Processor-to-Controller) of the SCCs which applies to any International Data Transfer conducted by Mistral AI acting as a Data Processor and is hereby incorporated and completed as follows:

- The “data exporter” is Mistral AI and the “data importer” is the Customer;



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- The optional docking clause in Clause 7 is implemented; the optional address clause in Clause 11(a) is struck;

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one (1) on-site audit per year to verify Mistral AI's compliance with this DPA, under the conditions defined below:

- This audit must be conducted with reasonable advance written notice of at least ninety (90) calendar days,
- This audit shall be carried out by an independent auditor selected jointly by the Parties for its expertise, independence and impartiality and which is, in any event, not a direct or indirect competitor of the Mistral AI,



- The selected auditor shall be bound by a confidentiality agreement,
- This audit shall be conducted during Mistral AI's regular business

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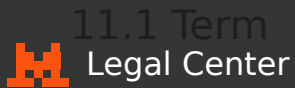
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delete or return to Customer all Personal Data Processed on Customer's behalf, in accordance with Mistral AI's deletion policies and procedures. Customer acknowledges that the Personal Data will no longer be accessible upon the expiry of a thirty (30) days period following the termination of the Customer's access to and use of the Mistral AI Products.

11. General



This DPA shall commence on the earlier of (a) the effective date of the

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Personal Data.

12.2 CCPA

Mistral AI shall not: (i) Process the Personal Data for a commercial purpose other than as necessary to provide the Mistral AI Products to Customer; (ii) “sell” or “share” (each as defined by the CCPA) any Personal Data; (iii) Process the Personal Data outside of the direct business relationship between Processor and Customer; or (iv) combine Personal Data with any other personal data or information it collects



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when using the Mistral AI Products in accordance with the Agreement.

- **Categories of personal data:** Customer's authorized users account data and any personal data processed by Customer when using the Mistral AI Products in accordance with the Agreement.
- **Special categories of personal data (if applicable):** None.
- **Duration and frequency of the Processing:** On a continuous basis, for the duration of the Agreement.



Legal Center

▪ **Nature of the Processing:** Providing the Mistral AI Product and performing its obligations in accordance with the Agreement which involves processing (including collection, organization, storage and

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is available [here](#).

EXHIBIT 2 - Technical and organizational measures

The technical and organizational measures implemented by Mistral AI are listed in Mistral AI's trust center available at <https://trust.mistral.ai/>.



Mistral AI may update these measures at any time, subject to Section 5 (Security) of the DPA.

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